Before the
New York State Public Service Commission

In the Matter of

Consolidated Edison Company of New York, Inc.

Case 25-E-0072

May 2025

Prepared Direct Testimony of:

Felicia Tunnah

On Behalf of:

The City of New York

INTRODUCTION

Q. PLEASE STATE YOUR NAME, OCCUPATION, AND BUSINESS ADDRESS.

A. My name is Felicia Tunnah. I am the Director of Operations Planning for Traffic Operations for the New York City Department of Transportation, or DOT. My business address is 3402 Queens Boulevard, Long Island City, New York 11104.

Q. ON WHOSE BEHALF ARE YOU SUBMITTING THIS TESTIMONY?

A. The City of New York, or City.

Q. PLEASE DESCRIBE YOUR EDUCATIONAL BACKGROUND.

A. I received a Bachelor's degree in Political Science from Vassar College in 1994 and a Master of City Planning degree from the University of Pennsylvania in 2004.

Q. PLEASE DESCRIBE YOUR PROFESSIONAL EXPERIENCE, OFFICIAL DUTIES AND RESPONSIBILITIES.

A. I have been in my current position since 2019. My responsibilities include managing contract development and work plans for street lighting contracts that impact multiple work units within Traffic Operations and DOT as a whole; developing and implementing solutions for street lighting issues and coordinating with Intergovernmental Affairs, Borough Commissioner

offices, and units within Traffic Operations; managing information regarding streetlights, signals and all third-party attachments among Traffic Operations, DOT legal, DOT executive staff, the New York City Office of Technology and Innovation, and Borough Commissioner's offices; and supervising the 5G Coordinator position which handles the day-to-day tracking and management of 5G implementation on DOT light poles and traffic poles.

Prior to this position, I worked in the Commissioner's office in Intergovernmental Affairs and prior to that position I worked in the Capital Planning and Initiation unit, primarily focusing on Reso A allocations. I have been at DOT since 2015.

Prior to working for DOT, I worked for the Alliance for Downtown NY, Union Square Partnership, and Jamaica Center Business Improvement District. I served in various roles from planning to economic development, marketing and as an executive director.

Q. HAVE YOU EVER TESTIFIED BEFORE ANY AGENCY OR COURT OR IN ANY OTHER VENUE ON THE TOPICS YOU ADDRESS IN THIS TESTIMONY?

A. No.

PURPOSE OF TESTIMONY

Q. WHAT IS THE PURPOSE OF YOUR TESTIMONY?

A. My testimony has two purposes. First, I will discuss the need for the Public Service Commission to require Con Edison to develop and implement a formal plan or procedure for the expeditious restoration of electric service to streetlights and traffic signals throughout New York City. Second, I will discuss the need to develop a new streetlight registry in coordination with Consolidated Edison Company of New York, Inc., which I refer to throughout my testimony as either Con Edison or the Company.

Q. ARE YOU SPONSORING ANY EXHIBITS WITH YOUR TESTIMONY?

A. No.

STREETLIGHT REPAIR PLAN

Q. PLEASE EXPLAIN THE RESPONSIBILITY FOR STREETLIGHTS AND TRAFFIC SIGNALS.

A. Within New York City, most streetlights and traffic signals, and the ones that are pertinent to this testimony, are owned by the City of New York and constructed, operated, and maintained by DOT. In addition to owning the poles, DOT owns and is responsible for the electric wiring within metal poles, which are hollow, and for electric wiring affixed to wood poles, to the extent there are still wood poles in use. DOT also is responsible for the streetlight fixtures and traffic light equipment affixed to the poles.

Con Edison is responsible for providing service to the streetlights

and traffic signals, and it does so via either its underground or overhead distribution system. Most commonly, Con Edison's wiring extends to an elbow located with the concrete base of the pole, where a connection is made to the wiring within the pole. That connection is the demarcation point between Con Edison and DOT ownership.

Q. DOES ANY OTHER ENTITY HAVE RESPONSIBILITY FOR THE STREETLIGHTS AND TRAFFIC SIGNALS?

A. Not for the streetlights, traffic signals, or poles, but potentially for attachments to the poles. There could be other entities which attach equipment and devices to poles. Those entities are responsible for their equipment and devices, and they are supposed to connect each piece of equipment or device directly to Con Edison's wiring in the base. I note that in some locations, Con Edison, itself, has attached devices to DOT poles. When it does so, Con Edison is responsible for its attachments and the wiring connected to those attachments.

Q. DO THOSE ENTITIES ALWAYS DO SO?

A. No. In some instances, the third-party attacher splices its wiring to the DOT wiring within or attached to the pole. This is a problem DOT is now addressing.

Q. CAN YOU PROVIDE EXAMPLES OF THESE ATTACHMENTS?

A. Yes. Examples include cameras installed by governmental agencies, air

quality detection devices also installed by governmental agencies, and telecommunications equipment installed by telecommunications companies.

Q. HOW IS DOT ADDRESSING THE ELECTRICAL ISSUES WITH THIRD-PARTY ATTACHMENTS?

A. When DOT becomes aware of the third-party attachments, either through requests made to DOT for approval of the attachments or discoveries of the existence of the attachments during field visits and field inspections, DOT notifies, or makes efforts to identify and then notify, the third-party attachers to contact Con Edison for the provision of electric service and to set up billing arrangements directly with Con Edison.

Q. ARE DOT'S STREETLIGHTS AND TRAFFIC SIGNALS METERED?

A. No. The streetlights and traffic signals are not metered.

Q. ARE THE THIRD PARTY ATTACHERS' EQUIPMENT AND DEVICES METERED?

A. DOT's understanding is that most of it is not metered. However, I have heard anecdotally that there now exist very compact meters, and some equipment may have these small meters attached. Since DOT is not responsible for those devices or their use of electricity, I am not familiar with the details of their uses.

Q. TURNING BACK TO DOT EQUIPMENT, DO YOU KNOW HOW DOT'S ELECTRIC CHARGES ARE DETERMINED?

A. Yes. For streetlights, the wattage of each bulb is known and tracked, and streetlights are generally lit and use constant amounts of electricity from dusk to dawn. Therefore, calculations can be made as to the amount of electricity used over a day and month, and the charges are based on those calculations. Similarly for traffic signals, the wattage of the bulbs and electricity usage per device is generally constant. Similar calculations are performed.

Q. ARE THERE ISSUES WITH CON EDISON'S PROVISION OF ELECTRICITY TO STREETLIGHTS AND TRAFFIC SIGNALS?

A. Yes. On any day, for any of a number of reasons, a streetlight or traffic signal may stop working. For public safety purposes, it is imperative that power be restored as quickly as possible. However, in some instances, it can take Con Edison weeks to months to years to restore service. These delays can put members of the public at risk, and sometimes at significant risk.

Q. WHAT ARE EXAMPLES OF THE REASONS A STREETLIGHT OR TRAFFIC SIGNAL STOPS WORKING?

A. Crashes are one example. A car or truck hits a pole and topples it. The crash can sever the wiring, or the wiring may be cut to attend to the crash

or remove the broken pole. Another example is corroded bases. Over time, concrete bases can deteriorate and become structurally unsound. A combination of time, weather conditions, and the weight of the poles can cause some bases to fail; others are intentionally taken down when deterioration is found to prevent them from falling. A third example is corrosion of the wiring, which eventually causes it to fail. A fourth example, which is the most common occurrence, is an obstruction which prevents the repair or replacement of a damaged wire. When there is an obstruction in the foundation, the foundation must be removed and a new foundation poured.

Q. WHAT WIRING ARE YOU REFERRING TO?

A. It could be DOT's wires, Con Edison's wires, or both. The first step in such instances is to determine what wiring is faulty. Once that is determined, the responsibility to effect repairs is assigned.

Q. CAN DOT JUST FIX THE PROBLEM WHEREVER IT IS TO RESTORE SERVICE TO THE STREETLIGHT OR TRAFFIC SIGNAL?

A. No. Con Edison prohibits DOT from touching Con Edison's cables. Therefore, if the problem is on Con Edison's side of the connection at the elbow, or within the Con Edison distribution cable, there is nothing DOT can do.

Q. WHAT HAPPENS WHEN THE PROBLEM IS WHOLLY OR PARTIALLY WITHIN THE DOT WIRING?

A. In those instances, DOT dispatches a crew to repair the wiring, and Con Edison is notified once the repair is completed and service is ready to be restored.

Q. DOES CON EDISON IMMEDIATELY RESTORE ELECTRIC SERVICE TO THE STREETLIGHT OR TRAFFIC SIGNAL ONCE IT RECEIVES THAT NOTICE FROM DOT?

A. Sometimes, but not always. In some instances, DOT waits for days, weeks, months, or years for Con Edison to restore service. If there also is a problem within the Con Edison wiring and Con Edison also must effect a repair, there can be long delays before it completes its work and restores electric service.

Q, DO THE DELAYS IN REPAIRING STREETLIGHTS PRESENT ANY CONCERNS FOR THE CITY?

A. Yes. The streetlights are critical for public safety purposes. For example, some parkways and other roads go through areas with lots of tree cover and can be very dark at night. Speed limits on those roads are typically higher than on other roads. Streetlights in those areas help drivers see each other at distances and help to avoid crashes. Separately, adequate lighting at intersections is a key component of Vision Zero.

DOT has had situations where one or more streetlights lost power due to problems within the Con Edison wiring, but Con Edison refused to immediately effect repairs. Its refusals directly led to heightened risks of crashes and potential injuries. In one instance, DOT had to involve its legal counsel and elevate matters to the Vice President level within Con Edison because of the urgency of situation. In DOT's view, there have not been legitimate reasons provided for Con Edison's refusals and delays in repairing its system. DOT should not have to involve its counsel, and matters like this should not need to be elevated to the officer level within Con Edison.

Q. WHAT IS VISION ZERO?

A. Vision Zero is an initiative to bring together multiple City agencies and other partners to improve street safety. It involves engineering and design changes to protect vulnerable uses of the streets, education on safe operation of vehicles and on pedestrian, bicycle, and car passenger safety, enforcement of traffic and vehicles laws and rules, and legislative actions to change driver behavior.

Q. HAVE THERE BEEN ANY OTHER PROBLEMS WITH CON EDISON?

A. Yes. Some streetlights are located between public transportation – bus stops and subway entrances – and housing developments and along streets that

otherwise are very dark at night. The light from the streetlights provides a measure of safety against street crime and provides a level of comfort to local residents, especially senior citizens and children. When those streetlights cease operating, DOT can receive dozens to hundreds of calls from residents, elected officials, community boards, community organizations, and others.

When DOT determines that the problem is with Con Edison's wiring, DOT notifies the Company and ask that repairs be effected as soon as possible because of the safety risks. Again, it can sometimes take weeks or months for repairs to be made.

Q. ARE YOU AWARE THAT CON EDISON IS SUBJECT TO A PERFORMANCE METRIC RELATED TO RESTORATION OF POWER TO STREETLIGHTS?

A. Yes. That metric was instituted at the urging of the City, and particularly to try to address DOT's concerns. That metric has definitely helped, and Con Edison has become more responsive. However, it has not fully resolved the problems, and DOT continues to encounter situations in which the restoration of service is unreasonably delayed.

Q. PLEASE EXPLAIN.

A. Broadly, the performance metric requires Con Edison to make permanent repairs within 90 days to at least 90 percent of streetlights that lose power

during the months of November through April, and within 45 days to at least 80 percent of streetlights that lose power during the months of May through October. According to the performance metric reports Con Edison submits to the Public Service Commission each year, it is meeting these targets.

The Company's most recent report was submitted on March 31, 2025 in Case 22-E-0064. According to that report, there are 119 streetlights that lost power in 2024 which are still without power, and a handful of streetlights which have been without power since 2023.

Q. THESE RESULTS APPEAR TO SUGGEST THAT THE METRIC IS HAVING THE DESIRED EFFECT. WHAT IS YOUR CONCERN?

A. I agree that the situation is far improved compared to several years ago before the metric was instituted. Then, DOT had streetlights that were de-energized for multiple years. Now, when viewed holistically, the results are good. However, when considered on a neighborhood basis, having streetlights out of service for six months or more is a concern. Moreover, in some areas, for the reasons I already explained, delays of two to three months can pose significant public safety risks.

Q. DO YOU HAVE ANY OTHER CONCERNS?

A. Yes. There is a relatively recent issue which is not captured by the performance metric. DOT has instituted a corroded base program to proactively replace concrete bases before the poles they support collapse.

The elbows I described previously extend from the bottom of the bases, and the Con Edison cables may not be long enough to extend to the new elbows or allow for connections to the new DOT wiring. In those cases, DOT needs Con Edison to install new cables. Con Edison's responsiveness has been inconsistent, resulting in DOT's inability to complete the projects and restore the streetlights or traffic signals on a timely basis.

Q. WHAT DO YOU PROPOSE?

A. The Public Service Commission should order Con Edison to develop and implement a procedure to effect repairs of all streetlights within a reasonable amount of time after being notified by DOT of the need for its assistance. To ensure that Con Edison adheres to this procedure, there should be consequences associated with its failure to timely respond.

Q. WHAT IS A REASONABLE AMOUNT OF TIME?

A. I cannot provide a specific or fixed number of hours or days because what is reasonable may depend on the location of the problem. For a traffic signal in Manhattan, reasonable could be within hours. In a residential area where the streets are otherwise very dark at night, reasonable could be within one to two days. Along a parkway though a heavily treed area, reasonable again could be within one to two days. Conversely, in an area where there is relatively constant night-time activity and which is relatively well-lit from adjacent establishments, reasonable could be within a few weeks.

Q. AS TO THE CONSEQUENCES, ARE YOU SUGGESTING THAT THE EXISTING PERFORMANCE METRIC BE MODIFIED?

A. Yes. DOT's experience with the existing metric has demonstrated that a repair time of 90 days in the winter, when it is darker for longer periods of each day, is too long. Even 45 days can be too long in some areas. Additionally, the metric does not address DOT's new base replacement program.

Q. WHAT DO YOU PROPOSE?

A. DOT proposes that the metric be revised to require Con Edison to respond within seven days of being notified of the need for it to effectuate a repair or cable replacement. Exceptions can be considered for severe weather events.

Q. IS IT POSSIBLE FOR CON EDISON TO COMPLETE ALL REPAIRS WITHIN SEVEN DAYS?

A. Possibly not. However, where a permanent repair cannot be completed immediately, the Company should install a shunt or other form of temporary service in order to restore service to existing streetlights and traffic signals.

Q. WHAT ABOUT FOR THE BASE REPLACEMENT PROGRAM?

A. DOT is optimistic that a procedure can be developed with Con Edison to schedule crews to perform this work as these are planned projects. The concern is that DOT will not know whether the existing Con Edison cables

are adequate until DOT excavates the base and examines the existing wiring. In these situations, a time frame of two weeks would be more appropriate.

As DOT envisions the procedure, DOT would notify Con Edison in advance of the areas in which work will be performed so that they can have a person present when the excavation occurs to ascertain whether repairs or replacements are needed. Once it is determined that Con Edison needs to take action, and given the prior notice, the City believes two weeks should be a sufficient amount of time for the Company to schedule its crew to perform the work. DOT's understanding is that the Company has the equipment needed for these jobs and maintains inventories of cables and other components that may be needed.

Q. YOU MENTIONED SCHEDULING THE WORK WITH CON EDISON. DO YOU HAVE ANY COMMENTS ON THE SCHEDULING PROCESS?

A. Yes. For many years, Con Edison had a dedicated streetlight group with whom DOT regularly interacted. That group was responsible for working with DOT to address all of the City's streetlight-related needs, including scheduling crews to make repairs and replacements. The group was very effective. However, for reasons never explained to us, Con Edison disbanded the group and required that DOT schedule work via its Power

Clerk application. In other words, DOT was being treated the same as anyone seeking assistance from the Company, including customers, building developers, and distributed resource developers.

Very recently, it seems that Con Edison has re-formed a streetlight group, which is appreciated. DOT doesn't know, though, whether this new group is dedicated to addressing streetlight issues as the former group was, or if it is assigned to handle streetlight issues as one of several responsibilities. The group is a relatively recent development, and DOT is still gaining experience with it.

Q. DO YOU BELIEVE IT IS APPROPRIATE TO TREAT STREETLIGHT REPAIRS THE SAME AS REQUESTS FOR NEW OR UPGRADED ELECTRIC SERVICE?

A. No. DOT is providing an important public service, not building a new building or developing a rooftop solar array. DOT does not believe it is appropriate for this public benefit work to be placed in the same queue as private projects and given no priority whatsoever. For many years, Con Edison agreed that streetlight work should be handled separately, and the Public Service Commission should direct the Company to restore the streetlight group.

STREETLIGHT REGISTRY

Q. WHAT IS THE STREETLIGHT REGISTRY?

A. There are hundreds of thousands of streetlight and traffic signal poles throughout New York City, and every pole has a discrete identifier. That identifier allows both Con Edison and DOT to track the poles and identify the poles when work is needed, whether due to scheduled maintenance, a crash, or other purpose. The Registry is essentially a list of every pole and its identifier.

Q. ARE THERE OTHER USES OF THE REGISTRY?

A. Yes. As I explained previously, DOT is charged for the electricity used by its streetlights based on the wattage of the bulbs and the hours of operation. Another important element of the calculation is the number of bulbs of each wattage. That information is taken from the Registry.

Additionally, when either DOT or Con Edison is planning to work on a particular pole and needs to coordinate with the other party, or one party needs the other party to do something before it starts work, both parties need to know which pole or poles are at issue. It is not sufficient to simply refer to the street or avenue, or to provide a street and cross street, because there likely are multiple poles on each block. The Registry is intended to allow for both parties to pinpoint individual poles.

Q. HOW IS THE REGISTRY SUPPOSED TO WORK?

A. Both Con Edison and DOT have access to the Registry, and both parties are supposed to update the Registry any time a new pole is added or replaced, or attachments are added or removed, or bulbs are replaced with different bulbs, or other actions occur. The City and DOT are not placing blame on anyone, but over time the accuracy of the Registry has diminished.

Q. ARE THERE OTHER PROBLEMS WITH THE REGISTRY?

A. Yes. Geolocation systems did not exist, or were very rudimentary, when the Registry was created. Therefore, locations were often contextual. That is, one pole was identified based on its relative location to another pole or some other landmark. However, over time, some reference points have either changed or been removed.

Q. WHAT DO YOU PROPOSE?

A. There is a need for a new Registry, and one which leverages modern technology such as global positioning system devices to allow for very precise geocoding. DOT recognizes that this will be significant undertaking given the size of the Registry. Because of the work involved, DOT estimates that it will take several years to complete. DOT is investing in new information technology systems that will aid this effort. DOT has been advised that Con Edison is proposing several new information technology systems within this rate case. While we do not know whether those systems, if approved by the Public Service Commission, would be suitable for this

purpose or could be adapted for this purpose, it is important to raise this issue now, before the new systems are implemented and the opportunity to adapt them is lost.

DOT also understands that this effort will require a commitment of resources and funding and is sensitive to the needs to maintain affordability of electric bills. However, as I discussed previously, streetlights and traffic signals serve an important public safety purpose, and it is necessary for Con Edison and the City to have good and accurate information regarding the streetlight system so that when issues arise, crews can be dispatched quickly to the correct locations and work can be effected immediately and with certainty.

Q. IS THERE A NEED FOR THE PUBLIC SERVICE COMMISSION TO PRESCRIBE THE MANNER IN WHICH THE NEW REGISTRY IS CREATED OR HOW THE POLES ARE TO BE IDENTIFIED?

A. I do not believe so. DOT is optimistic that the details can be worked out between DOT and Con Edison, provided Con Edison commits the necessary resources to this project. What DOT needs is for the Public Service Commission to authorize the funding and direct Con Edison to support this project.

Q. HOW MUCH WILL THIS PROJECT COST?

A. DOT does not know. The first step will be to scope the project and develop

a work plan. DOT and other City agencies have been advised that Con Edison has an extensive information technology department and very powerful information technology systems. However, DOT does not know if Con Edison can leverage its in-house expertise or if outside support will be needed. Such information should be gleaned as part of the development of the work plan. For now, DOT suggests that a few million dollars be allocated to this project.

Q. HAVE YOU DISCUSSED THIS PROJECT WITH CON EDISON?

A. DOT has had some discussions about the insufficiency of the existing Registry and the need to replace it. However, DOT has not had any detailed discussions because of the lack of funding for it. Based on past experiences, DOT knows that if DOT had raised it, Con Edison would have responded that there were no funds allocated to the project in its rate cases, so it is unable to proceed. DOT needs to move forward with this project, so placing it in the rate case will avoid any such response from the Company.

Q. DOES THIS CONCLUDE YOUR TESTIMONY?

A. Yes.